DEED OF WARRANTY BY

_____,

(Name of contractor)

IN FAVOUR OF

OBEROI REALTY LIMITED

_____.

AGAINST DEFECTS IN

(SCOPE OF WORKS)

DATED

_____

(DATE OF WARRANTY MADE)

FOR THE RESIDENTIAL / COMMERCIAL PROJECT

'(PROJECT NAME)'

FOR M/S OBEROI REALTY LIMITED.

LOCATED AT _____, _____

THIS WARRANTY is made on _____ of _____ 20__ between _____ (hereinafter called "**SUPPLIER/CONTRACTOR**" of the first part whose registered office is at _____,
in favour of **OBEROI REALTY LIMITED** (hereinafter called "**THE EMPLOYER**" which expression shall unless repugnant to context be deemed to mean and include its successors in title and assigns) of the second part whose registered office is at Commerz, 3rd Floor, International Business Park, Oberoi Garden City, Off. Western Express Highway, Goregaon (E), Mumbai 400063.

The Contractor and the Employer are hereinafter collectively referred to as "**Parties**" and individually as "**Party**", as the context may require.

WHEREAS: -

A. By Contract dated _____ ("**the Contract**") executed by and between the Contractor and the Employer, the Contractor has agreed to supply and/or install the product, equipment, items of works, materials and other relevant mechanism and parts necessary for the (State Nature of the Works here) as more particularly described therein ("**the Works**") and on the terms and conditions therein contained.

1. Pursuant to the Contract and based on discussions between the Contractor and the Employer, the Contractor has agreed to provide warranty for the Works under the Contract on the terms and conditions appearing hereinafter.

NOW THIS DEED WITNESSETH AND IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS UNDER:

1. The Contractor undertakes the responsibility for adequacy, suitability, integrity, durability and practicability of the system, installation and warrants that the design, materials, installation, workmanship of the whole or part of the Works, as the case may be, is fit for its intended purpose.

2. The Contractor warrants and undertakes: -

    a. it has exercised and will exercise reasonable skill and care in the selection of materials and goods for the Works insofar as such materials and goods have been or will be selected by the Contractor; and

    b. the satisfaction of workmanship, materials, performance, specification or requirement of the Works, insofar as such workmanship, materials, performance, specification or requirement is included or inferred from the Contract.

3. The Contractor further warrants: -

    a. that it is an experienced, properly qualified and Contractor in carrying out works of similar scope, nature and size to Works;

    b. it has carried out and will hereafter carry out its duties and obligations under the Contract subject to and in accordance with the terms thereof; and

    c. that it will / has used only skilled, experienced and properly qualified personnel in the performance of the Works.

4. The Contractor in addition to and without derogation from clause 3, warrants:

   a. against any uneven fading, peeling and discolouration (these defects varies between product to product) in respect of the material and workmanship.

   b. That the Works carried out/to be carried out is/will be of the quality as per the standard mentioned in the Contract and to the extent that the level of quality or standard where not stipulated in the Contract, of good workmanship and merchantable quality; and fit for the purposes for which they are required.
   c. The Contractor further warrants and undertakes to the Beneficiary that the Works shall not, when completed, incorporate any goods, materials or equipment which are (or which incorporate substances which are) stated in the Construction Contract to be prohibited or which are generally known at the time of use to be deleterious to health and safety or the durability of the Works in the particular circumstances in which they are to be used or are otherwise not in accordance or good building practice or techniques". For the purposes of this clause, the term "deleterious" includes a combination of materials that would or might have the effect of reducing the normal life expectancy:

      i. of the materials themselves;

      ii. of any materials to which they are affixed;

      iii. of the structure in which they are incorporated or to which they are affixed; or

      iv. of the Works or any part thereof,

      to a period of less than that which has been specified or would normally be expected

5. In the event of a breach of any of the aforesaid warranties, as to be decided by the Employer, whose decision shall be final and conclusive, the Engineer / Customer shall notify the Employer in writing of the event whereupon the Contractor shall within twenty-four (24) hours of receipt of the notice (or within a shorter or greater period of time as may be deemed reasonable by the Employer as the situation may warrant) inspect the complaint, and thereafter, as soon as practicable, and agreed to by the Employer, carry out all necessary repairs, replacements, tests and remedial work and make good all defects, damage or other faults (including but not limited to damage to any adjoining surfaces and/or finishes or to any mechanical, electrical and/or other services installations or any other works or properties caused directly or indirectly by the breach).

6. In the event that the remedial works undertaken by the Contractor prove to be not effective and/ or not to the satisfaction of the Employer, as to be decided by the Employer, the Contractor shall effect and complete such additional works and carry out all tests as may be directed by the Employer, until all the defects damage and faults have been remedied to the absolute satisfaction of the Employer.

7. Should the Contractor fails to fulfill the obligations under this Deed or the Contract, notwithstanding what is stated in the Contract, the Employer shall remedy the said defects, damage and faults. The Contractor shall reimburse the Employer all costs and expenses incurred by the Employer, including legal costs, on an indemnity basis, not later than 7 (seven) days from notification by the Employer to do so.

8. Provided that in lieu of requiring the Contractor to make good defects and undertake remedial works under this Deed or the Contract or exercising the power in Clause 6 hereof, the Employer may, at any time after notification of the event stated in Clause 5, but shall not be bound to,

accept part or the whole of the defective works unremedied and/or without removal or replacement. In this event, the imputed cost of the rectification of part or the whole of the defective works, or the loss of value to the Works under the Contract, whichever is greater, shall be a sum due to the Employer, to be deducted or set-off from any monies due to the Contractor under the Contract or otherwise recoverable at law from the Contractor. The imputed cost of rectification works shall be decided by the Employers' consultants whose decision shall be final and conclusive.

9. This warranty in favour of the Employer given under this Deed shall be valid for a period of (-) years from _____ to _____commencing from the Completion Date stated in the Completion Certificate referred to in the Contract.

10. All costs and expenses arising out of the performance of the obligations herein shall be solely borne by the Contractor.

11. Any change or variation in the extent or nature of the Works shall not in any way release the Contractor from any liability under this Deed.

12. The responsibility of the Contractor under this deed shall not be reduced or in any way released or limited by any enquiry or inspection by or on behalf of any person notwithstanding that such enquiry or inspection may give rise to a claim by the Beneficiary against a third party.

13. The Employer's rights and remedies herein contained are without prejudice and in addition to other express or implied rights and remedies under the Contract, or at law or at equity.

14. This Deed shall be freely assignable by the Employer to any other party without the consent of the Contractor and after such assignment, the Contractor shall perform all their obligations under this Warranty as if the assignee had been the party to whom this Deed was made in favour of instead of the Employer.

15. The Contractor hereby indemnifies and hold harmless the Employer, his successors in title and assigns from and against any liability, loss, damage, cost claim or proceedings caused by or arising out of the breach of the abovementioned warranties and covenants and/or in connection with the warranties set out in this Deed.

16. Any notice required to be served hereunder shall be in writing and served by hand or sent by registered post to the respective addresses of the parties hereto mentioned. Any notice by registered post shall be deemed to be served on the next working day after posting.

17. The Contractor acknowledges and agrees that it shall not be entitled to assign, transfer, charge, novate, or otherwise dispose of all or any of its rights, obligations or benefits arising under this Deed to any other party without the Employer's prior written consent.

18. This Deed shall be governed and interpreted in accordance with the Laws of India.

IN WITNESS WHEREOF Parties have executed and delivered this Deed in the day and year first above written.

{If the Contractor is a sole proprietorship or partnership}

The hand and seal of the _____ Works
Contractor were hereunto set in the presence of }

		……	……
		Seal	Seal
……		……	……
Signature of Witness	}	Signature	Signature
……	}	……	……

Name/IC No of Witness } Name Name

{If the Contractor is an incorporated company}

The Common seal of the _____ Works
Contractor was affixed in the presence of: }

……. ……

Signature of Director	Name of Director	
…….	……..	……..
Signature of Director/Secretary	Name of Director/Secretary	Common seal